IN THE HIGH COURT OF ORISSA AT CUTTACK
ABLAPL No.12111 of 2026
CNR No. ODHC010786292026

Debasish Jena @ Babul ..... ***Petitioner***

Represented by Adv. -
Amlan Shakti Paul

-versus-

STATE OF ODISHA ..... ***Opposite Party***

Represented by Adv. –

Mr. A.K. Pati, ASC

CORAM:
MR. JUSTICE ADITYA KUMAR MOHAPATRA

ORDER
23.10.2026

Order No.

01. 1. This matter is taken up through Hybrid Arrangement (Virtual /Physical Mode).

2. Heard learned counsel for the Petitioner and learned Additional Standing Counsel for the State. Perused the Anticipatory Bail Application as well as the F.I.R.

3. This is an application under Section 482 of the B.N.S.S., 2023 filed by the Petitioner for anticipatory bail, involving offence punishable under Section 52(a) of Odisha Excise Act. in 2(a)CC Case No.174 of 2026 in the Court of learned J.M.F.C.(Cog. Taking), Khordha arising out of District Mobile Unit, Khordha P.R. No.193 of 2026-27.

4. Learned counsel for the Petitioner submitted that the Petitioner does not want to press this bail application and seek liberty to surrender before the court below and move an application

for bail.

7. Considering such submissions, the Petitioner is permitted to surrender before the learned court in seisin over the matter within a period of three weeks from today and move an application for bail. In such eventuality, learned court in seisin over the matter shall do well to release the Petitioner on bail subject to such terms and conditions as the learned Magistrate may deem just and proper with further conditions that:-

I. shall not indulge in similar criminal activities while on bail;

II. shall appear before the local Police Station once in a fortnight for a period of three months, thereafter once in a month for a period of three months, thereafter once in a month till conclusion of trial preferably on 'Sunday' in between 10.00 A.M. to 1 P.M.

8. It is further directed that the bail granted to the Petitioner shall be subject to depositing a cash security of Rs.4,000/- (Rupees Four Thousand) each before the learned Court in seisin over the matter, which shall be kept in any Nationalized bank in interest bearing account initially for a period of one year which will be renewable from time to time till conclusion of trial and the same shall be abide by the final outcome of the trial of the case.

Violation of any of the terms and conditions shall entail cancellation of the bail.

9. The ABLAPL is disposed of accordingly.

Urgent certified copy of this order be granted as per rules.

(A.K. Mohapatra)
Vacation Judge

Sisir

Signature Not Verified
Digitally Signed
Signed by: SISIR KUMAR SETHI
Reason: Authentication
Location: ORISSA HIGH COURT
Date: 24-Oct-2026 18:38:45